THIRD-PARTY SUPPLEMENTAL / SPECIAL NEEDS TRUST

For the Sole Benefit of ETHAN MONTGOMERY

THIS THIRD-PARTY SPECIAL NEEDS TRUST AGREEMENT (the "Trust Agreement") is established this 12th day of November, 2026, by and between RICHARD STERLING MONTGOMERY and ELEANOR VANCE MONTGOMERY (the "Grantors") and JULIAN M. MONTGOMERY (the "Trustee"), for the lifelong supplemental benefit of ETHAN MONTGOMERY, born November 5, 2015 (the "Beneficiary").

Article I: THIRD-PARTY ORIGIN & NON-PAYBACK DECLARATION

Section 1.01 Third-Party Funding Only. This Trust is a third-party supplemental needs trust funded exclusively with assets belonging to the Grantors (via inter vivos gifts, life insurance proceeds, or pours/transfers from The Montgomery Revocable Living Trust). NO assets belonging to the Beneficiary (such as personal injury settlements, back-pay awards, or direct inheritances) shall ever be commingled with or accepted into this Trust.

Section 1.02 No Medicaid Payback Required. Because this is a Third-Party Special Needs Trust and not a self-settled trust under 42 U.S.C. § 1396p(d)(4)(A), upon the death of the Beneficiary, the State Medicaid agency shall have NO claim for reimbursement against the remaining principal, which shall pass directly to the Grantors' remainder beneficiaries named in Article IV.

Article II: SUPPLEMENTAL NEEDS PURPOSE & PRESERVE BENEFITS MANDATE

Section 2.01 Intent of Grantors — Supplement, Never Supplant. It is the primary intent of the Grantors that the assets of this Trust be used to supplement, and NEVER to supplant, impair, or diminish, any federal, state, local, or private means-tested government assistance or benefits for which the Beneficiary may be eligible or receiving, including but not limited to Supplemental Security Income ("SSI"), Medicaid, Waiver Programs, HUD Section 8 housing assistance, or state disability services.

Section 2.02 Purely Discretionary Supplemental Distributions. The Trustee may pay to or apply for the benefit of the Beneficiary such amounts from the net income or principal of the Trust as the Trustee, in its SOLE, ABSOLUTE, and UNFETTERED DISCRETION, deems advisable to provide for the Beneficiary's nonsupport supplemental needs. The Beneficiary shall have NO legal right to demand, compel, or direct any distribution from this Trust.

Section 2.03 Permitted Quality-of-Life Expenditures. Permissible supplemental distributions paid directly to third-party vendors include, by way of illustration:
• Medical, dental, rehabilitative, behavioral, or physical therapy services and assistive technology not covered by Medicaid;
• Private case management, companion care, caregiver respite, and advocacy services;
• Wheelchair-accessible vehicles, vehicle maintenance, insurance, and transportation;

• Computers, electronics, internet/phone service, hobby supplies, recreation, vacations, and travel expenses;
• Contributions to a qualified ABLE Account (IRC § 529A) owned by the Beneficiary up to the annual federal gift tax limit.

Section 2.04 Strict Prohibition on Direct Cash & ISM Guardrails. The Trustee shall NEVER distribute unrestricted cash directly to the Beneficiary. Prior to paying for any food or shelter item that could be classified by the Social Security Administration as "In-Kind Support and Maintenance" ("ISM") under the Presumed Maximum Value (PMV) rules, the Trustee shall evaluate whether such payment would reduce or eliminate the Beneficiary's SSI or linked Medicaid eligibility.

Article III: SPENDTHRIFT, EMERGENCY TERMINATION & SAVINGS CLAUSES

Section 3.01 Spendthrift & Non-Countable Resource Clause. No part of the principal or income of this Trust shall be considered an available resource to the Beneficiary for government benefit eligibility purposes, nor shall it be subject to the claims of any public agency or private creditor.

Section 3.02 Administrative Amendment Power for Statutory Changes. The Independent Trustee is authorized to amend the administrative or distribution provisions of this Trust without court approval to the extent strictly necessary to comply with changes in Social Security (POMS) or Medicaid laws and regulations so as to preserve the Beneficiary's eligibility.

Article IV: TERMINATION UPON DEATH OF BENEFICIARY

Section 4.01 Final Remainder Distribution. Upon the death of the Beneficiary, the Trustee may pay the Beneficiary's funeral and burial expenses, and shall distribute all remaining principal and undistributed income free of government payback claims to:
• Harrison Montgomery (50%); and
• Beatrice Vance (50%), per stirpes.

IN WITNESS WHEREOF, the Grantors and Trustee have executed this Third-Party Special Needs Trust Agreement on the date first written above.

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RICHARD STERLING MONTGOMERY, Grantor

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ELEANOR VANCE MONTGOMERY, Grantor

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JULIAN M. MONTGOMERY, Trustee

NOTARY ACKNOWLEDGMENT

STATE OF TEXAS
COUNTY OF HARRIS

Before me, the undersigned authority, on this day personally appeared RICHARD STERLING MONTGOMERY, ELEANOR VANCE MONTGOMERY, and JULIAN M. MONTGOMERY, known to me to be the persons whose names are subscribed to the foregoing instrument, and acknowledged to me that they executed the same for the purposes and consideration therein expressed.

Given under my hand and seal of office this 12th day of November, 2026.

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Notary Public, State of Texas
My Commission Expires: 10/15/2029